

UNITED COLOURS
The LGBTQIA+ community takes out a pride parade in New Delhi

'URBAN ELITIST' ISSUE?

The Centre, in its affidavit, told the Supreme Court that same-sex marriage was an "urban elitist concept" far removed from the social ethos of the country and did not represent the view of the "entire population" of the nation. But the CJI said same-sex marriages could not be described thus just because more people from cities were coming out of the closet. Several lawyers representing the litigants also pointed out how a large number of people who fled home because of their families disapproving of their same-sex relationship were from small towns. Like, the litigants Kajal from Muktsar in Punjab, her partner Bhavna from Bahadurgarh in Haryana, and Rituparna Borah, who is from one of the remotest villages in Assam. Zainab Patel, who underwent a gender-affirming surgery in 2016 and identifies as a woman, recalls being abandoned by her family, moving to slums, begging on the streets and taking to prostitution to survive. Against all odds, she earned her degree in management studies, went on to work with the UNDP and then the multinational KPMG. Now an inclusion officer at Pernod Ricard, she still can't find accommodation in a decent housing society in Mumbai because of her trans identity. "Yes, I am an 'urban elitist' living in a slum," she says.

CORE ELEMENTS OF MARRIAGE

During the hearing, Chief Justice of India D.Y. Chandrachud observed that the core elements of marriage are protected by constitutional values. "One, marriage itself postulates two individuals to cohabit. Two, marriage accompanies with it the existence of family. Three, marriage has procreation as a very important ingredient. Though we must be cognisant that the validity of marriage is not conditional on it. Four, marriage is exclusionary to all others... Five, [the] social acceptance of existence of marriage, [that is] social acceptance is not confined to that individual but how society looks at that institution." While admitting that the State has a legitimate interest in regulating marriage, the CJI said the next issue to examine is whether heterosexuality is a core element of marriage.



D.Y. Chandrachud
Chief Justice of India

THE COMMON LINK

On September 6, 2018, a five-judge bench of the Supreme Court partially struck down Section 377 of the Indian Penal Code, decriminalising same-sex relations between consenting adults. It meant LGBT individuals could engage in consensual intercourse in private spaces without inviting any legal action. Headed by the then chief justice Dipak Misra, the bench comprised, among others, Justice D.Y. Chandrachud, the current CJI, who is now heading the five-judge bench hearing a bunch of PILs seeking legal sanction for same-sex marriages in India. Justice Chandrachud was also part of the nine-judge Supreme Court bench that on August 24, 2017 recognised privacy as a fundamental right guaranteed by the Constitution. Known as the Puttaswamy case, this judgment has also been invoked in several PILs to support their cause. Almost all PILs also refer to the top court's judgment in *Shafin Jahan vs Asokan K.M.* (March 8, 2018), which upheld an individual's right to marry a person of one's choice as well as the right to choose a religion. The author of this particular judgment? Justice Chandrachud yet again.